

Leof. Kifisias 1-3, 11523 Athens

T: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

Athens, December 18, 2024

Protocol No. 3610

Decision 52/2024

The Hellenic Data Protection Authority convened at the invitation of its President in a teleconference meeting on Wednesday, November 13, 2023, at 10:00, in order to examine the case referred to in the background of this document. Present were Georgios Batzalexis, Deputy President, due to the absence of the President of the Authority Konstantinos Menoudakis, and the alternate members of the Authority Nikolaos Libos, as rapporteur, Dimosthenis Bougioukas, and Maria Psalla, replacing the regular members Charalambos Anthopoulos, Konstantinos Lamprinoudakis, and Grigorios Tsolias respectively, who, although duly summoned in writing, did not attend due to impediments. Present, without voting rights, were Panagiotis Tsopekis, auditor, as assistant rapporteur. By order of the President, the Secretary was Irini Papageorgopoulou and the coordinator was Georgia Palaiologou, employees of the Administrative Affairs Department of the Authority.

The Authority took into consideration the following:

A complaint was submitted to the Authority regarding the promotion of products and services of the company "SOCIAL COOPERATIVE ENTERPRISE FOR COLLECTIVE AND SOCIAL BENEFIT wedoo Digital Agency" (hereinafter WEDOO), via email messages. Specifically, with protocol number G/EIS/1433/01-03-2021, A (hereinafter the complainant) submitted a complaint to the Authority stating that he received an email from WEDOO for the commercial promotion of digital advertising services. In detail, the email states, among other things: "We would like to propose collaboration for the creation of an online store (e-shop) or the promotion of your business through Digital Marketing services. Our team specializes in digital advertising services (Google Ads, Social Media Marketing, Content Creation, Mail Marketing, Viber Campaign). We would like to point out that we provide you with the possibility of connecting the e-shop with ERP management programs & connection with XML. The above services are part of our long-standing expertise and experience that guarantees the safe and smooth connection of the stores." Furthermore, the complainant states that he had no prior relationship with WEDOO and that in response to his inquiry regarding the origin of his data, he was informed that they had been collected from market research.

The Authority informed WEDOO of the above complaint with document number G/EXE/855/17-03-2021. On May 17, 2021, a reminder email was sent with document number G/EXE/1234/17-05-2021, and on June 7, 2021, document number G/EXE/1424/07-06-2021 was sent, in which the Authority invited WEDOO to submit its views within ten calendar days. On September 16, 2021, the Authority, following a telephone conversation with WEDOO, resent the above documents to an email address provided upon request, without receiving a response. On October 15, 2021, the Authority again sent the initial notification document via registered letter with document number G/EXE/2345/15-10-2021, which was returned as undeliverable. The relevant documents were served to WEDOO by the Haidari Police Department on February 4, 2022, as evidenced by document number G/EIS/1797/04-02-2022, without receiving a response from WEDOO to the relevant document. WEDOO was summoned to a hearing with document number G/EXE/2664/21-10-2022 from the Authority, which was served by the Haidari Police Department on October 24, 2022. No representative from the company attended the meeting. Subsequently, the Hellenic Data Protection Authority issued decision 23/2023, the operative part of which states the following:

The Authority:

1. Exercising the corrective powers conferred upon it by Article 58(2)(b) of Regulation (EU) 2016/679 (General Data Protection Regulation - hereinafter GDPR), issues a reprimand to the complained company named "SOCIAL COOPERATIVE ENTERPRISE FOR COLLECTIVE AND SOCIAL BENEFIT wedoo Digital Agency," as the data controller for the reasons extensively mentioned in the previous section.

2. Exercising the corrective powers conferred upon it by Article 58(1)(a) of the GDPR, orders the complained party to respond promptly to the complaint.

3. Informs the complained party that in the event of non-compliance with the order of the previous paragraph within seven (7) calendar days from the service of this decision, it will proceed, exercising the corrective powers conferred upon it by Article 58(2)(h) of the GDPR, to impose an administrative fine pursuant to Article 83 of the GDPR.

Finally, the Authority communicated the above decision to WEDOO with registered letter number G/EIS/1466/23-05-2024, which was received by a representative of the company on May 29, 2024, according to the delivery receipt from the Hellenic Post (EL.TA.).

Since WEDOO did not comply with the operative part of the above decision, the Authority summoned the company to a hearing with document number G/EXE/2024/2755. This summons was served by the Aigaleo Police Department on January 13, 2024. No representative from the company attended the meeting.

CONSIDERED ACCORDING TO THE LAW

1. According to Article 11(1) of Law 3471/2016, "The use of automatic calling systems, particularly using facsimile devices (fax) or...

4

of electronic mail, and in general the performance of unsolicited communications by any means of electronic communication, [with or] without human intervention, for the purposes of direct commercial promotion of products or services and for all kinds of advertising purposes, is permitted only if the subscriber has expressly consented in advance. It is noted that based on paragraph 7 of the same article, "The above provisions also apply to subscribers who are legal entities."

2. According to Article 1 paragraphs 1 and 2 of the GDPR: "1. This regulation establishes rules concerning the protection of natural persons with regard to the processing of personal data and rules concerning the free movement of personal data."

3. The Authority, by decision 23/2023, ordered, exercising the corrective powers granted to it by Article 8 paragraph 1 subparagraph a) of the GDPR, WEDOO to respond immediately to the complaint. The said company did not respond within the deadline of seven (7) calendar days mentioned in point 2 of the operative part of the decision.

4. The email account to which the promotional email for commercial services was sent according to the complaint form does not correspond to a natural person but to a legal entity as it constitutes a central communication address (dalnave@dalnave.com) of a company and is not otherwise related to any natural person. Therefore, taking into account WEDOO's refusal to cooperate with the Authority and that according to paragraph 7 of Article 11 of Law 3471/2006 the provisions of this article also apply to subscribers who are legal entities, it is established that WEDOO, by sending an email message for the purpose of promoting its products or services to a legal entity, violated Article 11 paragraph 1 of Law 3471/2006.

5. WEDOO, according to the "Announcement of Registration of Decision for Conversion of Company to IKE" published on 17/05/2023, changed its corporate form from a Social Cooperative Enterprise (KOINSEP) to a private capital company (IKE) with registration number GEMI 166386961000, and Audit Company Registration Number: 193.

6. Based on the above, the Authority deems it appropriate to exercise its powers under Article 21 of Law 2472/1997 in conjunction with Article 13 paragraph 1 of Law 3471/2006, taking into account Article 84 of Law 4624/2019, for the established violation of Article 11 paragraph 1 of Law 3471/2006. For the calculation of the sanction, the Authority takes into account the factual data of the case under examination, the ongoing refusal of the controlled company to respond and cooperate with the Authority even after the issuance of the previous decision, the severity of the established violation which is deemed minor, the small number of complaints, and the size of the company's turnover.

1 <https://publicity.businessportal.gr/company/166386961000>

2 Last available turnover: €1,368,852.16 (for the year 2023).

<https://publicity.businessportal.gr/company/166386961000> Financial statements

FOR THESE REASONS

The Authority

Imposes on WEDOO DIGITAL AGENCY MONOPROSOPH I.K.E. based on Article 21 of Law 2472/1997 in conjunction with Article 13 paragraph 1 of Law 3471/2006, the effective, proportional, and deterrent administrative monetary fine that is appropriate in this specific case according to its particular circumstances, amounting to ten thousand (10,000) euros, for the aforementioned established violation of Article 11 paragraph 1 of Law 3471/2016 as analyzed in considerations 3 and 4 of this document.

The Deputy President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou